LawQ1: If legislators and judges all accepted the philosophical theory of determinism, what would be the effect on criminal sentencing?

Introduction

Fully accepted determinism, and sentencing lose its inherited ground. Criminal law begins after a wrong has been proved; Determinism begins before it, tracing the offender backward into prior causes[1]. Once that inquiry governs sentencing, punishment no longer looks like a consequence imposed for a proven wrong[2], but becomes an intervention justified by causal history and predicted risk[3].

If no one is self-created, why should punishment stop at the offender? If every act can be traced backward, why does law choose this person as the bearer of responsibility? Determinism exposes that stopping point. It turns what law treated as natural into something law must defend.

Causation explains the offender, but does not authorize the sentence. Determinism can trace the criminal's formation, yet cannot erase the legal significance of the victim's injury; nor claim a God's-eye view of causation while remaining a human institution. It faces finite persons, after finite wrongs, under finite procedures[4]. Explanation, however deep, cannot supply the state's warrant to punish.

Full determinism would not abolish sentencing, but change its legal form. Responsibility becomes attribution; mercy becomes selective visibility; judgment becomes prediction. The danger lies not in knowing too little about causation, but that in claiming to know enough.

1.Determinism Explains Occurrence; Sentencing Requires Authorization

Full determinism triggers a foundational crisis. Sentencing treats the defendant as the legal endpoint for a proven wrong. However, full determinism breaks that endpoint. It redescribes the defendant's conduct as prior causes. If legislators fully accept determinism, they must write sentencing rules that treat conduct as caused rather than chosen. If judges fully accept it, they must give sentencing reasons that account for causal histories rather than simply condemn choices.

If conduct is produced by prior causes, the offender no longer appears as the natural end of wrongdoing, but appears as the legal point at which explanation is forced to stop. If legislators and judges fully accept determinism in their legal roles, they cannot leave that attribution hidden.

Causal facts explain how conduct occurred, while do not tell the state what it may do. David Hume names the gap between fact and the obligation[5]. Stephen J. Morse[6] and H. L. A. Hart[7] make the same point sharper. Causal responsibility explains who produced an event; while liability-responsibility asks who may legally bear consequences. Judges, in sentencing, must answer the second question.

State v. Turner[8] illustrates the pressure from the other side. Determinism can explain Turner; it can also explain the suffering Turner left behind. But that is exactly why sentencing cannot become a search for total causation. If law follows every cause backward, the offender disappears into background. R. A. Duff's account of criminal law as public answerability shows why that placement matters. Sentencing is a public justification for imposing a legal consequence on a defendant after a wrong has been proved. It also answers to the victim[9]. Causal explanation may explain how the offender was formed, yet cannot erase the legal significance of the victim's injury. If sentencing looks only at the offender's causal history and future risk, the past wrong becomes secondary.

The first effect, therefore, is not mercy; but crisis. Full determinism forces sentencing to defend the very point where explanation stops and legal responsibility begins. Where crime comes from is one question; why the state may punish this defendant for this wrong is another. Determinism answers the first, while sentencing must still answer the second, and each question cannot be replaced by another.

2. Mercy Becomes Selection

The second effect appears when full determinism leaves philosophy and enters legislation. Section 1 showed that full determinism shakes the ground of responsibility; legislation then has to make that philosophy usable. The unfairness begins at that conversion. Determinism asks law to consider the whole causal chain. Law cannot do that. Legislators cannot write every cause into sentencing rules, and judges also cannot sentence from an entire life. A cause that cannot survive this translation is not proved false but becomes silent.

Once determinism becomes law, it must become categories and factors. The law does not see causation as God would see it. Even sincere determinist lawmakers cannot legislate total causation. This is why deterministic mercy can become another form of inequality. Structural causes are often the causes most powerful in life and least usable in court. Inner factors may shape conduct before the criminal act ever appears, yet are too broad, too political, and too difficult to separate from lives of many defendants.

McCleskey v. Kemp[10] shows exclusion after recognition. The Supreme Court did not treat that structural pattern as enough to disturb his sentence, because he had not shown discriminatory purpose in his own case. A cause may be real and measurable, yet legally unusable. Federal sentencing Guidelines state that socio-economic status is not relevant in determining a sentence. They also state that lack of guidance as a youth and similar disadvantaged upbringing are not relevant grounds for departure[11]. Some of the causes most likely to shape a life are excluded because they are too broad to become individual legal reasons.

This result is selective visibility. People most shaped by hidden forces may be the least able to make those forces visible in court. Formal knowledge of causation does not guarantee fairness, but when legislators write rules that hear only some causes, the system sounds humane while operating selectively. The causes most likely to shape a life become legally invisible.

3.An Algorithm Cannot Take Responsibility for a Judge

The third effect appears when the selection described in Section 2 becomes prediction. If legislators and judges fully accept determinism, they will naturally want a system that can process more causes than human judgment can. Risk-assessment tools are therefore not accidental to this problem, but the most natural instruments of deterministic sentencing. They convert biography into variables, variables into risk, and risk into a proposed intervention.

State v. Loomis[12] shows the temptation, especially for the judges. Correctional Offender Management Profiling for Alternative Sanctions (COMPAS) assessed Loomis as high risk, and the sentencing judge referred to that assessment when excluding probation. Once an algorithm affects the deprivation of liberty, it must face legal procedure and public reason, not only statistical confidence[13].

The Wisconsin Supreme Court allowed COMPAS only in a restrained way, which would be considered, but could not determine the severity of a sentence or decide whether a person should be incarcerated. The court required warnings because the algorithm's weighting method was not disclosed[14].

Loomis also shows that full acceptance of determinism would make judges and legislators more willing to break human conduct down into variables, risks, and possibilities for intervention[15]. Under full determinism, that phrase becomes unstable. The judge is not outside causation either; legal independence does not mean metaphysical independence from cause, but institutional responsibility for reasons.

Even the most radical determinist reformer might answer that sentencing should abandon blame and become preventive confinement. This does not defeat this essay's argument; it proves it. Once it enters sentencing, the state must decide whose causes count and whose liberty may be restricted in the name of future safety. Full determinism therefore may convert sentencing into selective risk management under the moral cover of welfare.

Technology moves toward speed; law must move slowly because it must give reasons. Human beings can be explained in many ways, but they cannot be exhausted by explanation. A person may be explained by causes, but can never be sentenced as the sum of them.

Conclusion

Partial acceptance of causal knowledge would make sentencing less reactive and more evidence-based. However, if legislators and judges fully accept determinism as the governing theory of sentencing, punishment risks becoming risk management. Law never deals with causation from a God's-eye view. It deals with finite human beings who demand reasons from one another within public procedure. The danger of fully accepting determinism is that judges and legislators may mistake knowing the cause for already knowing enough.

Endnotes & Reference

[1] Carl Hoefer, “Causal Determinism,” The Stanford Encyclopedia of Philosophy, ed. Edward N. Zalta and Uri Nodelman, https://plato.stanford.edu/entries/determinism-causal/. This essay uses causal determinism in the basic sense that facts about the past, together with the laws of nature, fix later events, including human conduct.

[2] For the idea that responsibility and trial practice are tied to public answerability rather than mere factual occurrence, see John Gardner, “The Mark of Responsibility”, Oxford Journal of Legal Studies 23, no. 2 (2003): 157-171; R. A. Duff, “Law, Language and Community: Some Preconditions of Criminal Liability”, Oxford Journal of Legal Studies 18, no. 2 (1998): 189-206. https://academic.oup.com/ojls/article-pdf/23/2/157/4327606/230157.pdf

[3] On non-retributive responses to crime, prevention, and the public-health/quarantine model, see Gregg D. Caruso, Rejecting Retributivism: Free Will, Punishment, and Criminal Justice (Cambridge: Cambridge University Press, 2021), esp. ch. 6; Derk Pereboom and Gregg D. Caruso, “Hard-Incompatibilist Existentialism”, in Neuroexistentialism, ed. Gregg D. Caruso and Owen Flanagan (Oxford: Oxford University Press, 2018). https://www.cambridge.org/core/books/rejecting-retributivism/public-healthquarantine-model-i/0A8BD1B267B9B5A8616D21ED33418600

[4] On criminal responsibility, responsibility practices, and the danger of treating causation as itself an excuse, see H. L. A. Hart, Punishment and Responsibility: Essays in the Philosophy of Law (Oxford: Oxford University Press, 1968); Stephen J. Morse, “Brain Overclaim Syndrome and Criminal Responsibility: A Diagnostic Note”, Ohio State Journal of Criminal Law 3 (2006): 397-412;
Stephen J. Morse, “Neuroscience, Free Will, and Criminal Responsibility,” in Free Will and the Brain, ed. Walter Glannon (Cambridge: Cambridge University Press, 2015). https://papers.ssrn.com/sol3/papers.cfm?abstract_id=896753

[5] David Hume, A Treatise of Human Nature, Book III, Part I, sec. I. Hume observes that writers move from “is, and is not” to “ought, or ought not,” and insists that this new relation must be explained. https://www.gutenberg.org/files/4705/4705-h/4705-h.htm

[6] Stephen J. Morse, “Brain Overclaim Syndrome and Criminal Responsibility: A Diagnostic Note,” Ohio State Journal of Criminal Law 3 (2006): 397–412, available at SSRN: https://ssrn.com/abstract=896753; Stephen J. Morse, “Neuroscience, Free Will, and Criminal Responsibility,” in Walter Glannon, ed., Free Will and the Brain: Neuroscientific, Philosophical, and Legal Perspectives (Cambridge: Cambridge University Press, 2015), available at SSRN: https://ssrn.com/abstract=2700328. Morse criticizes attempts to infer criminal-law conclusions directly from causal or neuroscientific explanations of behavior.

[7] H. L. A. Hart, Punishment and Responsibility: Essays in the Philosophy of Law, 2nd ed. (Oxford: Oxford University Press, 2008), “Postscript: Responsibility and Retribution”, 210-237. Hart distinguishes role-responsibility, causal responsibility, liability-responsibility, and capacity-responsibility. https://academic.oup.com/book/11532/chapter/160311870

[8] State v. Turner, 262 Mont. 39, 864 P.2d 235 (Mont. 1993), available at https://case-law.vlex.com/vid/state-v-turner-92-888845741; State v. Turner, No. 93-067, 868 P.2d 982 (Mont. 1994). Turner is used here to show that causal explanation cannot exhaust sentencing’s legal task: determinism may explain the offender, but it cannot erase the victim-facing significance of the wrong.

[9] Duff’s communicative account treats criminal trial and punishment as practices of calling a defendant to answer within a political community. See R. A. Duff, Punishment, Communication, and Community (Oxford: Oxford University Press, 2001); Duff, “Law, Language and Community”, 189-206. https://philpapers.org/rec/DUFPCA-3

[10] McCleskey v. Kemp, 481 U.S. 279, 286–87, 292–99, 312–19 (1987), available at https://tile.loc.gov/storage-services/service/ll/usrep/usrep481/usrep481279/usrep481279.pdf. McCleskey relied on the Baldus study to argue that Georgia's capital sentencing system was affected by race, especially the race of the victim. The Court held that this statistical evidence did not establish a constitutional violation in McCleskey's own case without proof of discriminatory purpose affecting his sentence.

[11] United States Sentencing Commission, Guidelines Manual, §5H1.10, "Race, Sex, National Origin, Creed, Religion, and Socio-Economic Status," and §5H1.12, "Lack of Guidance as a Youth and Similar Circumstances" (policy statement), https://www.ussc.gov/guidelines/2025-guidelines-manual/annotated-2025-chapter-5; see also U.S.S.G. §5H1.12 archive, https://www.ussc.gov/guidelines/guidelines-archive/2011-5h112. Section 5H1.10 treats socio-economic status as not relevant in determining a sentence, while §5H1.12 states that lack of guidance as a youth and similar disadvantaged upbringing are not relevant grounds for departure.

[12] State v. Loomis involved the sentencing court's use of a COMPAS risk assessment. State v. Loomis, 881 N.W.2d 749, 2016 WI 68. https://www.wicourts.gov/sc/opinion/DisplayDocument.pdf?content=pdf&seqNo=171690

[13] Loomis raised due process arguments about COMPAS's proprietary methodology, group-data basis, and use of gender; see State v. Loomis, 881 N.W.2d 749, paras34-35, paras46-78 (Wis. 2016). https://www.wicourts.gov/sc/opinion/DisplayDocument.pdf?content=pdf&seqNo=171690

[14] The Wisconsin Supreme Court permitted COMPAS as a limited sentencing aid while requiring warnings and emphasizing that it should not be determinative; see State v. Loomis, paras.93-100. See also Note, "State v. Loomis: Wisconsin Supreme Court Requires Warning Before Use of Algorithmic Risk Assessments in Sentencing", Harvard Law Review 130 (2017): 1530-1537. https://harvardlawreview.org/wp-content/uploads/2017/03/1530-1537_online.pdf

[15] For the one factor or non-determinative role of COMPAS in sentencing, see State v. Loomis, paras95-100; Harvard Law Review Note, 1532-1536. https://harvardlawreview.org/print/vol-130/state-v-loomis/